



CRM-M-32635-2026 (O&M)
DECIDED ON: 08.06.2026

....PETITIONER(S)

STATE OF PUNJAB & ANR

...RESPONDENT(S)

Present: Mr. GVS Behl, Advocate for the petitioner(s)
Mr. Gorav Kathuria, DAG, Punjab.
Mr. K.S. Riar, Advocate for the complainant.

SANDEEP MOUDGIL, J (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of Bhartiya Nagrik Suraksha Sanhita, 2023 (erstwhile 438 Cr.P.C) for grant of pre-arrest/Anticipatory Bail to the Petitioner in FIR No. 89, Dated - 21.04.2025, U/s 420 IPC (now 318(4) BNS) Police Station-Gharinda, District Amritsar Rural (Annexure P-1), which is arising out of a monetary dispute and had been given criminal colour.

2 Contention**On behalf of the petitioner**

At the outset, learned counsel for the petitioner submits that the petitioner is willing to return the whole amount to the complainant i.e. Rs. 35 lakhs, therefore, prays for grant of anticipatory bail to the petitioner.

Notice of motion.

On behalf of the State/complainant

On the asking of Court, Mr. Gorav Kathuria, DAG, Punjab, accepts notice on behalf of respondent/State.

Learned counsel for the complainant further contends that the talks of settlement are going on between the parties. Therefore, learned State Counsel and learned counsel for the complainant have no objection if anticipatory bail is granted to the petitioner.

However, learned counsel for the complainant submits that in case the petitioner do not abide by the settlement arrived at, he would be at liberty to seek revival of the present petition by moving necessary application.

3. Analysis

Having given due consideration to the submissions advanced, particularly to the fact that learned State Counsel and learned counsel for the complainant have no objection if anticipatory bail is granted to the petitioner in view of undertaking given by learned counsel for the petitioner that he is willing to return the whole amount to the complainant i.e. Rs. 35 lakhs, this Court is of the considered view that there is no valid or cogent reason to deny the bail to the present petitioner, wherein he has *bona fide* intentions and is ready and willing to join the investigation and cooperate for furtherance of the same so that the final report can be submitted by the Investigating Agency in time.

Since this Court is considering the prayer made by learned counsel for the petitioner in view of the undertaking given by him that he is ready to pay the whole amount, the prayer made by learned counsel for the complainant for revival of the petition is just and fair.

Petition is allowed.

It is made clear that if the petitioner backs out from the undertaking made before this Court, the respondent-complainant would be at liberty to move necessary application for revival of the present petition.

4. **Relief:-**

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to the satisfaction of Arresting Officer/Investigating Officer. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

08.06.2026
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(SANDEEP MOUDGIL)
JUDGE

Whether speaking/reasoned	: Yes/No
Whether reportable	: Yes/No